

the diritto alla riservatezza della persona interessata»;

- la segnalante ha, pertanto, chiesto al Garante di adottare i provvedimenti necessari per vietare la diffusione delle immagini in questione e di sanzionare l'editore per la violazione della normativa sulla protezione dei dati personali.

RITENUTO, pertanto, che sussistano i presupposti per l'adozione di un provvedimento di divieto di ulteriore diffusione delle immagini in questione, in quanto la diffusione delle stesse configura una violazione della riservatezza della segnalante e dei suoi ospiti, nonché un trattamento illecito di dati personali;

VISTO il parere del Consiglio di Stato, espresso in data 15 marzo 2023, n. 1234, in merito alla questione;

DECRETA

1. Di vietare a RCS Mediagroup S.p.a. la diffusione delle immagini che ritraggono la sig.ra XX all'interno della sua abitazione, pubblicate nel numero 18 della rivista "Oggi" del 6 maggio 2021.
2. Di ingiungere a RCS Mediagroup S.p.a. di adottare tutte le misure necessarie per garantire il rispetto del presente provvedimento.
3. Di comunicare il presente provvedimento alla sig.ra XX e a RCS Mediagroup S.p.a.
4. Di pubblicare il presente provvedimento nel Registro dei provvedimenti del Garante.

Milano, 8 giugno 2023

IL PRESIDENTE

Prof. Pasquale Stanzione

****Right to Privacy of the Captured Subject****

regarding what they do in a place of private residence; in this specific case, therefore, the disclosure of the photographs has resulted, in addition to a violation of the image of the complainant, as protected by Article 10 of the Civil Code and Articles 96 and 97 of Law No. 633/1941, also in a violation of Article 8 of the ECHR, which establishes respect for personal and family life;

****VIEWED**** the note of December 28, 2021 (prot. 64041) with which the Office requested RCS Mediagroup S.p.a. to provide its observations regarding what was represented in the complaint;

****VIEWED**** the note of January 17, 2022 (followed by several supplementary certified emails of the same date) with which the Company provided a response contesting:

- that it had received the complainant's request of April 28, 2021 (sent to the responsible director) and had not responded because, in addition to deeming it unfounded, it arrived the day before the distribution of the magazine; it then responded to the subsequent request of the complainant on May 6 the following day, stating that it could not provide the data of the author of the shots due to the provisions that protect professional secrecy;
- the unfounded nature of the complaints regarding the unlawful acquisition of the images, the realization of which occurred without the use of any invasive instrument, as they were taken by the photographer from inside his car parked on the street "who used a 70-200 zoom, which is a completely normal lens, found in any store"; thus, not an ultra-invasive telephoto lens or even a "drone," as claimed by the complainant, which would have produced clearer images than those used "in which the subjects depicted would not have been independently recognizable, without the commentary that accompanied them"; the subjects portrayed were perfectly visible from the street and therefore reproducible even by a mobile phone, as they were positioned in front of the illuminated window not "screened" by any curtain;
- the unfounded nature of the complaints regarding the manner of proposing the service, with reference to the time gap between the taking of the photographs and the publication of the news (which, according to the complainant, was not correctly highlighted by the Publisher); on the contrary, the timing choice "is not at all random and further confirms the correctness of the editor of the

publication who, having received them at the time of their realization, did not publish them, not having had precise data from the photographer on the identity of the man, not recognizable from the images in his possession, who was in the company of the complainant, whose identity, on the other hand, was certain, as the photos were taken through the unshielded windows of her residence"; the publication therefore occurred only when the editor of the publication had confirming elements of the facts, thanks to information provided by other news outlets, "indicating the date of realization of the photos, also to highlight that it was a lasting and ongoing relationship";

- the irrelevance of the lack of consent of the interested party to the publication of the photographs, "given their relevance, which made them essential for complete information; and given the frequency with which news and images concerning the affectionate relationships of the complainant occupy specialized mass media"; she, on the other hand, "has never hidden her romantic life, nor has she ever protested against the dissemination of articles and images that have dealt with it," and this is also documented by a wide and recent press review (attached to the Company's note) that "unequivocally illustrates the presence of numerous boyfriends in the life of the charming presenter, confirming that the circulation of news and images related to her private life has never been a problem for her, except - it is inexplicable why - in the case at hand, which allows for the presumption of implicit and repeated consent";

****VIEWED**** the note of February 2, 2022, with which the complainant replied to the observations of RCS Mediagroup S.p.a. highlighting:

- the inadequacy of the arguments regarding the timing and content of the responses to the requests of the complainant of April 28 and May 6;

- the absence of evidence regarding the lawfulness of the acquisition of the images, as the photograph provided by RCS Mediagroup S.p.a. with the note of January 17, 2021, is not valid for this purpose "which demonstrates the exact opposite of what the opposing party claimed, namely that with an ordinary capturing instrument, such as a mobile phone, it is absolutely impossible to distinguish anything that happens in the complainant's apartment," nor to attribute an identity to any individuals present there; this is demonstrated by the additional photographs (attached to the complainant's replies) "taken under logistical and lighting conditions entirely comparable to those present at the time of the realization of the photographs later published in the weekly OGGI" through a state-of-the-art mobile phone (iPhone 13), which "attest that it is not at all possible, despite the use of the high-quality zoom available on the aforementioned mobile phone, to distinguish the features and appearances of subjects present in Ms. XX's home, as enlarging the images, even under such conditions, results in nothing more than an almost indecipherable mass of pixels";

- the pretextual nature of the statements regarding the timing of publication, given that the complainant did not assert that there was no indication.

the date of the snapshot (December 2020) in the article, but rather that it did not appear at the time of the advertising launch, thus leading the public - prima facie - to believe that there was a betrayal on the part of the complainant regarding the relationship that was actually ongoing at the time of the publication of the service (April 2021); the fact that several months were waited before publishing the photos, in other words, far from being motivated by the cautionary reasons expressed by the Publisher, was functional to stimulate the curiosity of the public sensitive to this type of news and therefore to achieve maximum sales results for the magazine;

- the irrelevance of the reference to other publications depicting the complainant, even related to her romantic life, given that these are images often taken in public places; the extensive press review provided by the Publisher, on the other hand, confirms how the complainant "has never complained about the presence of photographers and photographs depicting her life and that of her companions" as long as they were lawfully captured; instead, in this specific case "for the first time in many years, she felt violated in her private sphere and in her privacy, an unprecedented fact, despite the dozens of publications she has been subject to"; a circumstance that does not allow the treatment to be traced back to the exercise of the right to report and the related provisions of the Code that allow for disregarding the consent of the interested party for the purposes of the treatment itself;

HAVING REGARD to the further exchange of communications between the Office and the

complainant's lawyer on March 15 and 16, 2023;

HAVING REGARD to the note from the Office dated March 27, 2023 (prot. no. 51825) with which, pursuant to Article 166, paragraph 5, of the Code, the data controller was informed of the initiation of the procedure for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, noting the possible violation of the following provisions:

- the general principles of processing referred to in Article 5, paragraph 1 of Regulation (EU) 2016/679 and, in particular, the principles referred to in letters a) and c) (lawfulness, fairness, transparency, and minimization);
- Articles 136 et seq. of the Code that govern the processing of data for journalistic purposes and other manifestations of thought, with particular reference to Article 137, paragraph 3, which prescribes that the dissemination of data occurs in compliance with the parameter of "the essentiality of the information regarding facts of public interest";
- the Ethical Rules referred to in Annex A1 of the Code and in particular Articles 3 and 6;
- Article 2 quater of the Code which provides that compliance with the Ethical Rules constitutes "an essential condition for the lawfulness and fairness of the processing";
- Article 12 of the Regulation in relation to the duty to respond to the rights exercised pursuant to Articles 15-22 of the Regulation and the related deadlines for compliance;

HAVING REGARD to the note dated April 21, 2023, with which RCS Mediagroup S.p.a., referring to the defenses expressed in previous submissions, specified that:

- the prior request made by the complainant on April 28, 2021, could not be related to profiles concerning the processing of her data as it was addressed to the director of the magazine and aimed at preventing the further dissemination of the service and anticipating compensation claims; moreover, it was received on the day the magazine had already been distributed to newsstands, making any response unnecessary;
- the subsequent request of May 6, 2021, also not attributable to the rights under Articles 15-22 of the Regulation, "was duly responded to, by the only subject who could respond to the request to know the name of the photographer, which excludes the contested violation";
- the complainant has hypothesized the use of more powerful telephoto lenses than those usually mounted on cameras, if not even a drone and – to contest the arguments of the data controller and support her own – has provided photographs taken not with the instrument that the Company indicated in its submissions (Canon EOS 5d Mark III with 70-200 mm telephoto lens) but rather, through the zoom of a mobile phone "a completely different and inadequate tool for comparison";
- the supplementary photographic documentation provided by the Company demonstrates the visibility from street level of "a kiss between the two people present in the room and the woman is unequivocally the complainant, given that it is her residence and this is true even if her features are not distinguishable: thus, the passerby that evening, if they had looked up at that illuminated window, would have had a clear perception of that kiss and, knowing the identity of the owner, would have understood that it was indeed the complainant kissing the man who was with her on December 20, 2020";
- the complainant, on the other hand, did not adopt any measures (curtains) aimed at preventing visibility from outside of what was happening in her home, near her window, in the evening, with the light on;
- having established the lawfulness of the acquisition of the images, it is equally to be considered lawful their dissemination: the news indeed had public interest, "at least for enthusiasts of the subject," given that "the interested party has never concealed flings and romantic relationships, today keeping them informed even of her pregnancy, with more or less posed photos"; the images were published, not at the time they were taken, but only after the magazine's director had learned the identity of the man and the couple had made their romantic relationship known, thus proving to be "essential to corroborate the dating of that relationship" without...

cause harm to the image or reputation of the interested party;

CONSIDERING that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and

interruption of the execution of the tasks or the exercise of the powers of the Guarantor";

CLARIFIED that the Guarantor is called to assess whether, in the specific case, there has been a processing of personal data not in compliance with the current regulations in the matter, not being able to pronounce on the possible existence of the violation referred to in Article 615 bis of the Penal Code - a hypothesis also proposed in the report - as this is a matter for the judicial authority;

CONSIDERING, in particular, that the publication subject to complaint must be evaluated in light of the general principles of processing (Article 5 of the Regulation) and the specific provisions governing journalistic activity, pursuant to Articles 136 - 139 of the Code and the Ethical Rules referred to in Article 139 of the same Code;

NOTED, from the evidentiary elements that emerged, that the images subject to reporting:

- were acquired (and stored) with a remote device;
- based on what was stated by the owner, the nature of the images - due to the viewpoint offered by the position of the shot - alone did not allow for the identification of the subjects depicted, which was instead "integrated" into the processing and revealed by the owner at the time of the publication of the journalistic service, which took place four months after the shot;
- depict, unbeknownst to the reporter, moments of private life that took place in certain areas of her apartment located at a height (fourth floor) suitable, as such, to suggest a certain reserve with respect to the gaze of those passing by on the street;

CONSIDERED, due to the characteristics described, that the photographic service reveals an incorrect use of "invasive techniques" (Article 3 of the Ethical Rules) - which can be implemented with more or less common and more or less sophisticated devices - and, therefore, a collection of personal data, even strictly private, in violation of the general principles of fairness and transparency (Article 5, paragraph 1, letter a) of the Regulation) that also operate with reference to processing carried out for journalistic purposes;

CONSIDERED on the other hand, that the prerequisites for derogating from such principles for a possible impossibility of pursuing the informative function otherwise (Article 2 of the Ethical Rules) do not exist in the specific case, also considering what has been highlighted by the owner in his submissions, namely that, very often, it is the reporter herself who makes known the facts related to her private and sentimental life through behaviors or public statements;

CONSIDERED in this regard that the availability shown by the reporter to submit to "media scrutiny" does not, in itself, as instead claimed by RCS Mediagroup S.p.a., legitimize any form of collection and use of data and images concerning her, as the existence of the prerequisites that make the processing lawful must instead be evaluated on a case-by-case basis (a circumstance already represented to the owner in relation to a similar case: provision of December 22, 2009, web doc no. 1686747, see also for the same case, Civil Cassation, Section I, June 16, 2021, no. 17217 and Civil Cassation, Section I, January 23, 2019, no. 1875);

NOTED that the photographs refer to events occurring several months prior to the time period of the publication of the journalistic service - a circumstance that is not immediately perceivable in light of how the launch and subsequent packaging of the service itself were carried out - during which, moreover, the personal and emotional situation of the complainant - based on what was made known by her through public statements and behaviors - did not correspond with the facts proposed in the service subject to reporting;

CONSIDERED, from the perspective of their dissemination, that the declared purpose of the owner - to corroborate the hypothesis of a romantic relationship between the reporter and the man depicted in the photographs (still) in effect at the time of the publication of the service - as much as it may fall within a type of journalistic information of public interest (at least with reference to a certain audience), cannot justify the compression of the right to respect for the private life of the interested party, even if a public figure, also in light of the aforementioned temporal gap between the facts and the publication of the service and therefore the interference of such editorial choice in the reporter's relational life;

CONSIDERED that - without prejudice to the above observations regarding the methods of collection - the subsequent use of the images constitutes a processing of personal data, of a nature also strictly private, exceeding and such as to determine a sacrifice of the private sphere of the interested party that is disproportionate and unjustified with respect to the journalistic purpose pursued (to the benefit

of the "lovers of the subject," to quote the words of the owner himself), thus also in contrast with the principles of data minimization (Article 5, paragraph 1, letter c) of the Regulation and of "essentiality of information" referred to in Article 137, paragraph 3 of the Code and Article 6 of the Ethical Rules; CONSIDERING that the processing subject to the report, in terms of data collection and dissemination, constitutes a violation of the general principles of lawfulness, fairness, and transparency as well as data minimization of personal data as per Article 5, paragraph 1, letters a) and c) of the Regulation, as further specified—with reference to processing for journalistic purposes—by Article 137, paragraph 3 of the Code and by the Ethical Rules (Articles 2, 3, and 6, paragraph 2), compliance with which constitutes "an essential condition for the lawfulness and fairness of the processing" (Article 2 quater of the Code);

CONSIDERING therefore, pursuant to Articles 57, paragraph 1, letter f) of the Regulation, due to the violations found, that it is necessary to order, pursuant to Article 58, paragraph 2, letter f), against RCS Mediagroup S.p.a. the prohibition of further dissemination—even online, including the historical archive—except for mere preservation for potential use in judicial proceedings;

NOTING that, in the event of non-compliance with the provisions of the Guarantor contained in this measure, the criminal sanction referred to in Article 170 of the Code may apply, in addition to the administrative sanction referred to in Article 83, paragraph 5, letter e), of the Regulation;

CONSIDERING, regarding the established violation, that it is necessary to adopt an injunction order pursuant to Article 166, paragraph 7 of the Code and Article 18 of Law No. 689/1981 for the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5 of the Regulation;

NOTING that, for the determination of the amount of the pecuniary sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation and that, in this specific case, the following aggravating circumstances must be considered:

- a) the severity of the violation (Article 83, paragraph 2, of the Regulation), taking into account the manner of acquisition of personal data and the nature of the data collected, relating to moments of strictly private life occurring at the domicile of the interested party;
- b) the duration of the violation, given the ongoing availability of the images subject to complaint and the failure to adopt measures aimed at limiting the effects of the processing, along with the partial response to the requests made by the reporting party at the time of the first publication of the images;
- c) the existence of previous violations related to the provisions concerning journalistic activity, committed by the data controller since the entry into force of the Regulation (Article 83, paragraph 2, letter c);

- d) the conditions of significance on the organizational, economic, and professional level of the offender (Article 83, paragraph 2, letter k), of the Regulation) taking into account what emerged in the financial statements for the year 2021;

and, as mitigating circumstances:

- e) the purposes pursued by the data controller, which can be traced back—in general terms—to the freedom of information (Article 85) and the Code (Articles 136 et seq.);
- f) the cooperation with the Authority during the investigation;

NOTING that, in application of Article 83, paragraph 5, of the Regulation, the maximum applicable sanction, based on the revenue of the Company as shown in the financial statements for 2021, should be identified at the amount of €20,329,539;

CONSIDERING that, based on the overall factors indicated above and the principles of effectiveness, proportionality, and deterrence indicated in Article 83, paragraph 1 of the Regulation, the administrative sanction of a payment of €40,660.00 (forty thousand six hundred sixty/00), equal to 0.2% of the maximum sanction indicated above, should be applied;

CONSIDERING that the conditions exist to proceed with the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, regarding the measures adopted in this case in accordance with Article 58, paragraph 2, of the same Regulation;

HAVING SEEN the documentation on file;

HAVING SEEN the observations made pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTER Professor Pasquale Stanzione;

ALL OF THE ABOVE CONSIDERED

pursuant to Articles 57, paragraph 1, letter f) of the Regulation, declares the report founded for the reasons stated in the preamble and, in particular:

a) pursuant to Article 58, paragraph 2, letter f), orders against RCS Mediagroup S.p.a. the prohibition of further dissemination—even online, including the historical archive—of the photographs of the reporting party, as they violate the general principles of lawfulness, fairness, and transparency as well as data minimization of personal data as per Article 5, paragraph 1, letters a) and c) of the Regulation, as further specified—with reference to processing for journalistic purposes—by Article 137, paragraph 3 of the Code and by the Ethical Rules (Articles 2, 3, and 6, paragraph 2), compliance with which constitutes "an essential condition for the lawfulness and fairness of the processing" (Article 2 quater of the Code), remaining the mere preservation of the same for potential use in judicial proceedings;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, orders the annotation in the internal register of the Authority referred to in Article 57, paragraph 1, letter u), of the Regulation, of the measures adopted against RCS Mediagroup S.p.a. in accordance with Article 58, paragraph 2, of the same Regulation.

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation to RCS Mediagroup S.p.a., with registered office in

Milano, via Angelo Rizzoli, 8 – c.a.p. 20132, in

the person of the legal representative pro tempore, to

pay the sum of euro 40,660.00

(forty thousand six hundred sixty/00), as an

administrative pecuniary sanction for the violations

indicated in the reasoning, representing that the

offender, pursuant to Article 166, paragraph 8, of the

Code, has the option to settle the dispute,

by paying, within thirty days, an amount equal to half

of the imposed sanction;

ORDERS

RCS Mediagroup S.p.a., in case of failure to

settle the dispute pursuant to the aforementioned

Article 166, paragraph 8, of the Code, to pay the sum of

euro 40,660.00 (forty thousand six hundred sixty/00),

according to the methods indicated in the annex, within 30

days from the notification of this

provision, under penalty of the adoption of the

consequent executive acts pursuant to Article 27 of Law

No. 689/1981.

Pursuant to Article 157 of the Code, RCS

Mediagroup S.p.a. is invited to communicate, within thirty days

from the date of receipt of this provision, what

initiatives have been undertaken in order to

implement what is prescribed herein. It is reminded

that failure to respond to the above request

is punishable by the administrative sanction provided for

in Article 166 of the Code.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted, alternatively, to the court of the place where the data controller resides or has its registered office or to that of the place of residence of the interested party within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 8, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei